

## AFFIDATIO

**AFFIDATIO.** A swearing of the oath of fidelity or of fealty to one's lord, under whose protection the quasi-vassal has voluntarily come. Brown.

**AFFIDATIO DOMINORUM.** An oath taken by the lords in parliament.

**AFFIDATUS.** One who is not a vassal, but who for the sake of protection has connected himself with one more powerful. Spelman; 2 Bl.Comm. 46.

**AFFIDAVIT.** A written or printed declaration or statement of facts, made voluntarily, and confirmed by the oath or affirmation of the party making it, taken before an officer having authority to administer such oath. Cox v. Stern, 170 Ill. 442, 48 N.E. 906, 62 Am.St.Rep. 385; Hays v. Loomis, 84 Ill. 18. A statement or declaration reduced to writing, and sworn to or affirmed before some officer who has authority to administer an oath or affirmation. Shelton v. Berry, 19 Tex. 154, 70 Am.Dec. 326, and In re Breidt, 84 N.J.Eq. 222, 94 A. 214, 216.

A written or printed declaration or statement of facts, made voluntarily, and confirmed by the oath or affirmation of the party making it, taken before an officer having authority to administer such oath. June v. School Dist. No. 11, Southfield Tp., 283 Mich. 533, 278 N.W. 676, 677, 116 A.L.R. 581. Any voluntary ex parte statement reduced to writing and sworn to or affirmed before some person legally authorized to administer oath or affirmation, made without notice to adverse party and without opportunity to cross-examine. Kirk v. Hartlieb, 193 Ark. 37, 97 S.W.2d 434, 435, 436. The word sometimes includes "depositions." U. S. v. Kaplan, D.C.Ga., 286 F. 963, 970.

"Affidavits" are of two kinds; those which serve as evidence to advise the court in the decision of some preliminary issue or determination of some substantial right, and those which merely serve to invoke the judicial power. Worthen v. State, 189 Ala. 395, 66 So. 686, 688.

**AFFIDAVIT OF DEFENSE.** An affidavit stating that the defendant has a good defense to the plaintiff's action on the merits. The statements required in such an affidavit vary considerably in the different states where they are required. Called also an affidavit of merits (*q. v.*), as in Massachusetts.

**AFFIDAVIT OF DEMAND.** "Affidavit of demand" filed under Code section to obtain judgment for want of affidavit of defense held not equivalent of "declaration." Penn Central Light & Power Co. v. Central Eastern Power Co., 6 W. W.Harr. 74, 171 A. 332.

**AFFIDAVIT OF MERITS.** One setting forth that the defendant has a meritorious defense (substantial and not technical) and stating the facts constituting the same. Palmer v. Rogers, 70 Iowa 381, 30 N.W. 645. Represents that, on the substantial facts of the case, justice is with the affiant. Wendel v. Wendel, 58 S.D. 438, 236 N.W. 468, 469.

**AFFIDAVIT OF SERVICE.** An affidavit intended to certify the service of a writ, notice, or other document.

**AFFIDAVIT TO HOLD TO BAIL.** An affidavit required in many cases before the defendant in a civil action may be arrested. Such an affidavit

must contain a statement, clearly and certainly expressed, by some one acquainted with the fact, of an indebtedness from the defendant to the plaintiff, and must show a distinct cause of action; 1 Chit.P1. 165.

**AFFILARE.** L. Lat. To put on record; to file or affile. *Affiletur*, let it be filed. 8 Coke, 160. *De recordo affilatum*, affiled of record. 2 Ld. Raym. 1476.

**AFFILE.** A term employed in old practice, signifying to put on file. 2 Maule & S. 202. In modern usage it is contracted to *file*.

**AFFILIATE.** Signifies a condition of being united, being in close connection, allied, or attached as a member or branch. Johanson v. Riverside County Select Groves, 4 Cal.App.2d 114, 40 P.2d 530, 534.

"Affiliate with" is defined as to receive on friendly terms; to associate with; to be intimate with; to sympathize with; to consort with; and to connect or associate one's self with. Wolck v. Weedin, C.C.A.Wash., 58 F.2d 928, 930. But "affiliated" does not bear construction that one of affiliated organizations is in all particulars identical with or covered by parent organization with which it may be said to be affiliated. People v. Horiuchi, 114 Cal.App. 415, 300 P. 457, 460.

**AFFILIATION.** Imports less than membership in an organization, but more than sympathy, and a working alliance to bring to fruition the proscribed program of a proscribed organization, as distinguished from mere co-operation with a proscribed organization in lawful activities, is essential. Bridges v. Wixon, Cal., 326 U.S. 135, 65 S.Ct. 1443, 1447, 89 L.Ed. 2103.

It includes an element of dependability upon which the organization can rely which, though not equivalent to membership duty, rests upon course of conduct that could not be abruptly ended without giving at least reasonable cause for charge of breach of good faith. U. S. ex rel. Kettunen v. Reimer, C.C.A.N.Y., 79 F.2d 315, 317.

The act of imputing or determining the paternity of a bastard child, and the obligation to maintain it.

### Corporations

Actual control of corporations by same interests is insufficient; legally enforceable control of stock of corporations by same interests being required. Island Petroleum Co. v. Commissioner of Internal Revenue, C.C.A., 57 F.2d 992, 994. Commences with acquisition of corporation from owners outside of group and ends with disposal of all properties or stock to those outside group. Hernandez v. Charles Ilfeld Co., C.C.A.N.M., 66 F.2d 236, 238.

### Ecclesiastical Law

A condition which prevented the superior from removing the person affiliated to another convent. Guyot, Report.

### French Law

A species of adoption which exists by custom in some parts of France. The person affiliated succeeded equally with other heirs to the property acquired by the deceased to whom he had been affiliated, but not to that which he inherited.

**AFFINAGE.** A refining of metals. Blount.

**AFFINES.** In the civil law, connections by marriage, whether of the persons or their relatives. Calvinus, Lex.

Neighbors, who own or occupy adjoining lands. Dig. 10, 1, 12.

From this word we have affinity, denoting relationship by marriage; 1 Bla.Com. 434. The singular, *affinis*, is used in a variety of related significations—a boundary; Du Cange; a partaker or sharer, *affinis culpe* (an aider or one who has knowledge of a crime); Calvinus, Lex.

**AFFINIS MEI AFFINIS NON EST MIHI AFFINIS.** One who is related by marriage to a person related to me by marriage has no affinity to me. Shelf.Mar. & Div. 174.

**AFFINITAS.** Lat. In the civil law, affinity; relationship by marriage. Inst. 1, 10, 6.

**AFFINITAS AFFINITATIS.** Remote relationship by marriage. That connection between parties arising from marriage which is neither consanguinity nor affinity. Davidson v. Whitehill, 87 Vt. 499, 89 A. 1081, 1085. This term signifies the connection between the kinsmen of the two persons married, as, for example, the husband's brother and the wife's sister. Erskine, Inst. 1. 6. 8.

**AFFINITY.** A close agreement; relation; spiritual relation or attraction held to exist between certain persons. State ex inf. Norman v. Ellis, 325 Mo. 154, 28 S.W.2d 363, 367. Relation which, one spouse because of marriage has to blood relatives of the other. State v. Hooper, 140 Kan. 481, 37 P.2d 52.

Degrees of relationship by affinity are computed as are degrees of relationship by consanguinity. The doctrine of affinity grew out of the canonical maxim that marriage makes husband and wife one. The husband has the same relation, by affinity, to his wife's blood relatives as she has to them by consanguinity and vice versa. State v. Hooper, 140 Kan. 481, 37 P.2d 52.

Affinity is distinguished into three kinds: (1) *Direct*, or that subsisting between the husband and his wife's relations by blood, or between the wife and the husband's relations by blood; (2) *secondary*, or that which subsists between the husband and his wife's relations by marriage; (3) *collateral*, or that which subsists between the husband and the relations of his wife's relations. Wharton.

In a larger sense, consanguinity or kindred. Co.Litt. 157a.

#### Quasi Affinity

In the civil law, the affinity which exists between two persons, one of whom has been betrothed to a kinsman of the other, but who have never been married.

**AFFIRM.** To ratify, make firm, confirm, establish, reassert. Cowell; Ashby v. Peters, 128 Neb. 338, 258 N.W. 639, 644, 99 A.L.R. 843.

In the practice of appellate courts, to *affirm* a judgment, decree, or order, is to declare that it is valid and right, and must stand as rendered below; to ratify and reassert it; to concur in its correctness and confirm its efficacy. Boner v. Fall River County Bank, 25 Wyo. 260, 168 P. 726, 727.

#### Contracts

Ratify and accept voidable contract. Cf. Adopt.

#### Pleading

To allege or aver a matter of fact; to 'state it affirmatively; the opposite of 'deny or *traverse*.

#### Practice

To make affirmation; to make a solemn and formal declaration or asseveration that an affidavit is true, that the witness will tell the truth, etc., this being substituted for an oath in certain cases. Also, to give testimony on affirmation.

**AFFIRMANCE.** In practice. The confirming, or ratifying of a former law, or judgment. Cowell; Blount.

The confirmation and ratification by an appellate court of a judgment, order, or decree of a lower court brought before it for review. See Affirm, note.

The ratification or confirmation of a voidable contract or act by the party who is to be bound thereby.

The term is in accuracy to be distinguished from *ratification*, which is a recognition of the validity or binding force as against the party ratifying, of some act performed by another person; and from *confirmation*, which would seem to apply more properly to cases where a doubtful authority has been exercised by another in behalf of the person ratifying; but these distinctions are not generally observed with much care.

**AFFIRMANCE DAY GENERAL.** In the English court of exchequer, a day appointed by the judges of the common pleas, and barons of the exchequer, to be held a few days after the beginning of every term for the general affirmation or reversal of judgments. 2 Tidd, Pr. 1091.

**AFFIRMANT.** A person who testifies on affirmation, or who affirms instead of taking an oath. See Affirmation. Used in affidavits and depositions which are *affirmed*, instead of sworn to in place of the word "deponent."

**AFFIRMANTI, NON NEGANTI INCUMBIT PROBATIO.** The [burden of] proof lies upon him who affirms, not upon one who denies. Steph. Pl. 84.

**AFFIRMANTIS EST PROBARE.** He who affirms must prove. Porter v. Stevens, 9 Cush., Mass., 535.

**AFFIRMATION.** In practice, a solemn and formal declaration or asseveration that an affidavit is true, that the witness will tell the truth, etc., this being substituted for an oath in certain cases.

A solemn religious asseveration in the nature of an oath. 1 Greenl.Ev. § 371.

Quakers, as a class, and other persons who have conscientious scruples against taking an oath, are allowed to make affirmation in any mode which they may declare to be binding upon their consciences, in confirmation of the truth of testimony which they are about to give. 1 Atk. 21, 46; Cowp. 340, 389; 1 Leach Cr.Cas. 64; 1 Ry. & M. 77.

**AFFIRMATION OF FACT.** A statement concerning a subject-matter of a transaction which might otherwise be only an expression of opinion but which is affirmed as an existing fact material to